

No. 23-13396

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

ON PETITION FOR REVIEW OF SEPTEMBER 6, 2023 ORDER OF THE
U.S. SECURITIES AND EXCHANGE COMMISSION

**MOTION TO WITHDRAW APPEARANCE OF TIMOTHY D.
KATSIFF**

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LLC, Nasdaq BX, Inc., Nasdaq GEMX,
LLC, Nasdaq ISE, LLC, Nasdaq MRX,
LLC, and Nasdaq PHLX LLC*

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-1, Movants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC (the “Nasdaq entities”) provide the following certificate of interested persons and corporate disclosure statement.

No publicly traded company or corporation, other than those identified in the certificates of interested persons filed by Petitioners on October 17, 2023 (ECF No. 1-2) and October 31, 2023 (ECF No. 6); by Consolidated Audit Trail, LLC, the Cboe entities, the Nasdaq entities, and the NYSE entities (collectively, the “Intervenors”) on November 14, 2023 (ECF Nos. 18, 19, 21, and 22); by the Securities and Exchange commission on November 28, 2023 (ECF No. 40); and by *amicus curiae* on February 25, 2024 (ECF No. 58); or included in the motions and/or briefs filed by Petitioners (ECF Nos. 41, 49, 102); by Intervenors (ECF Nos. 28, 29, 30, 31, 43, 44, 45, 97, 98); by the Securities Exchange Commission (ECF No. 96); and by *amici curiae* (ECF Nos. 51, 61, 65, 67, 69, 74, 75, 90, 91) has an interest in the outcome of this case.

The Nasdaq entities are direct or indirect subsidiaries of Nasdaq, Inc., which

is publicly traded under the ticker symbol “NDAQ.” Nasdaq, Inc. has no parent corporation. Borse Dubai Limited, Investor AB (Nasdaq Stockholm: INVEB), and Thoma Bravo UGP, LLC, each own 10% or more of Nasdaq, Inc.’s common stock.

The Nasdaq entities will file an amended certificate of interested persons and corporate disclosure statement should they become aware of a change in interests that would affect the disclosures as required by Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-4.

Date: June 3, 2024

/s/ Paul Lantieri III

Paul Lantieri III

Stephen J. Kastenberg

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Nasdaq PHLX LLC*

Counsel for the Nasdaq entities respectfully move this Court to enter an order allowing the withdrawal of Timothy D. Katsiff as counsel of record in the above-captioned matter.

Mr. Katsiff has departed from Ballard Spahr LLP and no longer represents the Nasdaq entities in the above-captioned matter. The Nasdaq entities continue to be represented by the remaining attorneys of Ballard Spahr LLP who have previously entered appearances in this matter. Accordingly, no prejudice or delay will result from allowing Mr. Katsiff to withdraw as counsel of record for the Nasdaq entities.

WHEREFORE, the undersigned counsel respectfully request that this Court enter an order granting this motion and permitting Timothy D. Katsiff to withdraw from this action as counsel of record for the Nasdaq entities in the above-captioned matter.

Date: June 3, 2024

/s/ Paul Lantieri III

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CERTIFICATE OF SERVICE

I certify that, on June 3, 2024, I electronically filed the foregoing with the United States Court of Appeals for the Eleventh Circuit through the Court's CM/ECF system. Parties represented by registered CM/ECF users will be served by the CM/ECF system.

/s/ Paul Lantieri III

Paul Lantieri III

**CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT, TYPEFACE
REQUIREMENTS, AND TYPE-STYLE REQUIREMENTS**

Pursuant to Federal Rule of Appellate Procedure Rule 32(g)(1), I certify that this motion complies with the typeface requirements of Federal Rule of Appellate Procedure 27(d)(1) because it was prepared in 14-point Times New Roman, a proportionally-spaced typeface, using Microsoft Word 2016. *See also* Fed. R. App. P. 32(a)(5)–(6). This motion complies with the type-volume limitation of Federal Rule of Appellate Procedure 27(d)(2) because it contains 128 words, excluding the parts exempted under Rule 32(f). As permitted by Federal Rule of Appellate Procedure 32(g)(1), the undersigned has relied upon the word count feature of Microsoft Word 2016 in preparing this certificate.

/s/ Paul Lantieri III
Paul Lantieri III